

The Court set a firm trial date eight months after the January 15, 2026 trial setting conference at which American Honda participated. American Honda showed neither diligence nor good cause for moving the summary judgment hearing within 30-days of trial, as the Court previously found, a finding that was well-supported and affirmed on American Honda's writ petition. Plaintiff has no obligation under the circumstances either to file a merits opposition despite the clearly, undisputedly deficient statutory notice, or to accede to a continuance of the hearing or a continuance of the trial and extension of the five-year deadline to accommodate American Honda's untimely motion.

For these reasons, the motion is **denied**.

18. 9:00 AM CASE NUMBER: MSC21-02445

CASE NAME: NIST VS FARRELL

***HEARING ON MOTION IN RE: TERMINATING SANCTIONS AGAINST DEFENDANT SHANNA M. FARRELL**

FILED BY: NIST, WILLIAM G

TENTATIVE RULING:

Summary

This tentative ruling is for Lines 18 and 23. Plaintiffs William and Mari Nist ("Plaintiffs" or "Nists") have filed two discovery motions against Defendant / Cross-Complainant Shanna M. Farrell ("Farrell"). Line 18 seeks terminating sanctions. Line 23 seeks an order compelling Farrell to attend a deposition.

The Court **grants** the Motion for Terminating Sanctions and **grants** the Motion to Compel Deposition of Farrell as set forth herein.

Background

This action arises from an easement dispute between Plaintiffs and Farrell. Plaintiffs served discovery requests seeking information regarding the parties' easement dispute, Farrell's defenses, alleged misconduct, and damages. Farrell responded with boilerplate objections and evasive answers, forcing Plaintiffs to file a motion to compel. On April 30, 2025, the Court granted Plaintiffs' motion to compel in substantial part, ordering Farrell to provide code-compliant verified responses within fifteen days and imposing monetary sanctions of \$4,703.77 against Farrell for misusing the discovery process without substantial justification.

Farrell failed to comply with the Court's order. She did not pay the monetary sanctions, necessitating enforcement proceedings. On March 12, 2026, the Court ordered Farrell to appear personally on June 16, 2026, for a debtor's examination to provide information to enforce the money judgment. Although Farrell appeared for the examination, she was unresponsive and failed to provide meaningful information. The Court thereafter ordered Farrell in contempt. Farrell was appointed counsel from the Court's conflict panel and was arraigned for her contempt proceedings. A pre-trial conference on the contempt matter is scheduled for November 6, 2026. Trial for this matter is scheduled for September 14, 2026.

Farrell's discovery abuse extends to her repeated failure to appear for properly noticed depositions. Plaintiffs first noticed Farrell's deposition for February 6, 2025. After defense counsel raised

availability issues, Plaintiffs agreed to reschedule. On June 3, 2025, defense counsel confirmed July 15, 2025, as an available date, but on July 11, 2025, counsel advised that Farrell would not be produced. Following extensive meet-and-confer efforts, Plaintiffs noticed Farrell's deposition for January 29, 2026, a date defense counsel had confirmed. On January 27, 2026, less than forty-eight hours before the scheduled deposition, defense counsel unilaterally canceled, citing an unspecified "all-day obligation" out of the County, without serving written objections, moving for a protective order, or providing alternate dates.

On April 8, 2026, Plaintiffs again properly noticed Farrell's deposition for 8:30 a.m. at Veritext in Oakland, California. Plaintiffs, their counsel, the deposition officer, and videographer all appeared prepared to proceed. At 8:02 a.m., defense counsel advised that Farrell would not attend due to an "acute medical condition." The proceeding went on the record at 9:40 a.m. to document Farrell's nonappearance, with Plaintiffs' counsel confirming on the record that Farrell was not present. Farrell has failed to appear at every noticed deposition, despite Plaintiffs' repeated efforts to coordinate dates and their personal appearances prepared to examine her.

Plaintiff assert, and the Court finds, that Farrell is not a peripheral witness. She is a named defendant, cross-complainant, and central actor in the claims and defenses in this case. Her deposition testimony is essential to address liability, causation, damages, access denial, obstruction, emotional distress issues, her asserted defenses, and her crossclaims. Plaintiffs represent that they cannot fairly prepare for trial, which is set for September 14, 2026, without Farrell's sworn testimony. Each missed deposition has forced Plaintiffs to incur unnecessary attorney time, preparation costs, appearance expenses, court reporter fees, and videographer costs, while depriving them of critical evidence needed for mediation, dispositive motions, and trial preparation.

The Court finds that Farrell's conduct reflects a sustained pattern of defiance that has interfered with discovery, enforcement, case preparation, and trial readiness. Lesser sanctions have already been imposed and have proven ineffective. The Court's monetary sanctions remain unsatisfied, and Farrell's unresponsiveness during the debtor's examination resulted in a contempt finding. Farrell's repeated deposition non-appearances are troubling to the Court. Her failure to appear on April 8, 2026, after Plaintiffs and their counsel appeared in person demonstrate that ordinary discovery enforcement has failed and that terminating sanctions are necessary to protect Plaintiffs and preserve the integrity of these litigation proceedings.

Analysis

Farrell is Self-Represented but is Subject to the Discovery Rules

The Court is aware that Farrell is proceeding without an attorney in her lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented

parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Farrell was misled by the Court or Defendants. Indeed, the Court's prior rulings and orders to comply with her discovery obligations in previous motions set forth compliance dates. She failed to do so.

Farrell Did not File a Timely Opposition to these Motions

California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784-785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Applied here, the Court notes that Farrell, through her former counsel, filed an opposition to Plaintiffs' application for an *ex parte* order shortening time to hear the motions, but did not file an opposition to either motions. The Court finds that Farrell's failure to timely oppose both motions is a deemed to be her consent to the granting of both motions.

Legal Standard for Terminating Sanctions

Under Code of Civil Procedure section 2023.030(d), the Court may impose terminating sanctions by striking out pleadings, staying further proceedings until a discovery order is obeyed, dismissing the action or any part thereof, or rendering judgment by default against the party engaging in misuse of the discovery process. Misuse of the discovery process includes "[f]ailing to respond or to submit to an authorized method of discovery" and "[d]isobeying a court order to provide discovery." (Code Civ. Proc., §§ 2023.010(d), (g).)

California law requires that discovery sanctions be tailored to the harm caused and should not exceed what is required to protect the party harmed by the misuse. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1229.) While the statutory scheme generally contemplates an incremental approach with terminating sanctions as a last resort, trial courts may impose terminating sanctions as a first measure in extreme cases, or where the record shows lesser sanctions would be ineffective. (*Department of*

Forestry & Fire Protection v. Howell (2017) 18 Cal.App.5th 154, 191-192; *Atlas v. Davidyan* (2025) 113 Cal.App.5th 1086, 1095.)

Here, the record establishes that lesser sanctions have been tried and failed. The Court previously found that Farrell misused the discovery process by making boilerplate objections, failing to provide further responses after meet-and-confer efforts, and opposing Plaintiffs' discovery motion without substantial justification, and imposed monetary sanctions of \$4,703.77. Farrell's noncompliance continued unabated after that order. She failed to pay the court-ordered sanctions, necessitating enforcement proceedings. When ordered for a debtor's examination to provide financial information, Farrell appeared but was unresponsive, frustrating the purpose of the examination and resulting in a contempt finding. This pattern demonstrates that additional monetary sanctions would be insufficient to secure compliance. (*Padron v. Watchtower Bible & Tract Society of New York, Inc.* (2017) 16 Cal.App.5th 1246, 1254; *Rodriguez v. WNT, Inc.* (2025) 116 Cal.App.5th 791.)

Willfulness may be inferred from repeated failures to comply, continued resistance after court intervention, and conduct showing that the noncompliance is not accidental. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213, 228.) The Court finds that Farrell's repeated deposition nonappearances on February 6, 2025, July 15, 2025, January 29, 2026, and April 8, 2026 reflect a conscious and intentional failure to participate in discovery, not accidental or isolated lapses. The record demonstrates that on April 8, 2026, Plaintiffs, their counsel, the deposition officer, and videographer all appeared prepared to proceed, while Farrell failed to appear, with notice of her absence coming only at 8:02 a.m. on the morning of the deposition. This sustained pattern of evasiveness, disregard of court orders, and resistance even after court intervention establishes the willfulness required for terminating sanctions. (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1102; *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 701.)

The Court must also consider the totality of the circumstances, including the detriment to the propounding party and the number of formal and informal attempts to obtain discovery. (*Creed-21, supra*, 18 Cal.App.5th at 701; *Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390) Farrell is a party and cross-complainant whose testimony is essential to liability, causation, damages, her defenses, and her crossclaims. Plaintiffs have repeatedly attempted to obtain her deposition, personally appearing on April 8, 2026, only to be met with nonappearance. With trial set for September 14, 2026, Farrell's refusal to appear for deposition has prejudiced Plaintiffs' ability to prepare for trial, obtain evidence for mediation, and present their case. Each missed deposition has forced Plaintiffs to incur unnecessary costs and fees without advancing discovery.

Terminating sanctions are proportionate to Farrell's conduct because her misconduct is repeated, willful, prejudicial, and resistant to lesser sanctions. (*Vallbona v. Springer* (1996) 43 Cal.App.4th 1525, 1545; *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 1003.) Where, as here, each lesser degree of sanction has failed and the party's discovery abuses are willful, preceded by a history of abuse, and unlikely to be cured by less severe sanctions, terminating sanctions are warranted. (*Rodriguez v. WNT, Inc.* (2025) 116 Cal.App.5th 791, 797; *Atlas v. Davidyan* (2025) 113 Cal.App.5th 1086, 1096.)

The Court finds that dismissing Farrell's cross-complaint against her will prevent her from using the Court's process affirmatively while refusing to comply with that same process and will protect

Plaintiffs from further prejudice as trial approaches.

Ruling

1. Plaintiffs' Motion for Terminating Sanctions Against Defendant Shanna M. Farrell is **granted**;
2. Defendant/Cross-Complainant Shanna M. Farrell's cross-complaint is **dismissed** with prejudice; Farrell is precluded from pursuing her cross-complaint against the Plaintiffs at trial.
3. Defendant /Cross-Complainant Shanna M. Farrell shall pay Plaintiffs' reasonable attorneys' fees and costs incurred in connection with both the Motion for Terminating Sanctions and the Motion to Compel Deposition. Plaintiff's counsel is ordered to submit a declaration in support of fees and costs incurred for both motions on or before the commencement of trial.
4. All trial, pretrial, and case-management dates affected by this Order shall be addressed at the trial readiness conference on September 8, 2026 at 8:30 a.m. Plaintiff shall provide the Court with a brief CMC statement outlining the trial and pre-trial matters affected by this order.
5. Plaintiffs' Motion to Compel the deposition of Shanna M. Farrell is **granted**. Farrell is ordered to make herself available for deposition on September 1, 2026 at 9:00 a.m. at a location to be noticed by Plaintiffs. The deposition shall be conducted in person and shall continue day-to-day, except holidays and weekends, from 9:00 a.m. until 4:00 p.m. until complete. The Parties may stipulate to other dates and times mutually available. Farrell's non-compliance with this order may subject her to fines of up to \$100 per day not to exceed \$1,500 pursuant to Cal. Code of Civ. Proc. § 177.5, or to further contempt proceedings.
6. Plaintiffs' counsel is ordered to prepare and e-file a proposed order conforming to this ruling no later than five (5) days from the date of this hearing and shall serve Farrell with the Order and File a Notice of Entry of Order.

19. 9:00 AM CASE NUMBER: MSC22-00329

CASE NAME: MARTINEZ VS LIMON LOCUST

***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**

FILED BY:

TENTATIVE RULING:

This Compliance Hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement and Final Judgment filed on January 5, 2026

Upon review of the compliance report filed by Plaintiff Maria Vejar Martinez, an individual, and on behalf of other persons similarly situated, through Class Counsel, and the declaration filed by Amanda Howard of ILYM Group certifying disbursement filed on July 24, 2026, the Court determines that Plaintiff has complied with the Court's orders. No appearance is required at the hearing on August 5, 2026.